



Order under Section 69 Residential Tenancies Act, 2006

Citation: Centurion Property Associates Inc. v Broomes, 2025 ONLTB 96864

Date: 2025-12-18

File Number: LTB-L-073728-24

In the matter of: 113, 7 BIGGIN CRT
Toronto ON M4A1M3

Between: Centurion Property Associates Inc. Landlord

And

Asheber Broomes Tenants
Candice Gallimore

Centurion Property Associates Inc. (the 'Landlord') applied for an order to terminate the tenancy and evict Asheber Broomes and Candice Gallimore (the 'Tenant') because:

- the Tenant or another occupant of the rental unit has committed an illegal act or has carried out, or permitted someone to carry out an illegal trade, business or occupation in the rental unit or the residential complex;
- the Tenant, another occupant of the rental unit or a person the Tenant permitted in the residential complex has seriously impaired the safety of any person and the act or omission occurred in the residential complex.

The Landlord also claimed compensation for each day the Tenant remained in the unit after the termination date.

This application was heard by videoconference on February 6, 2025 at 10:46 a.m.

The Landlord's agent Vernon Domingo, the Landlord's representative Martin Zarnett and the Tenant Asheber Broomes attended the hearing. Detective Constable Justin Essert also attended

the hearing as a witness for the Landlord. Faith McGregor also attended the hearing to support to the Landlord's representative.

The Associate Chair of the Landlord and Tenant Board has determined that the Member who heard the application is unable to issue a decision in this matter. The matter has therefore been reassigned to me on the Associate Chair's own initiative under the authority of subsection 4.4(1) of the *Statutory Powers Procedure Act*. As the reassigned adjudicator, I have in accordance with the authority of subsection 4.4(6) of the *Statutory Powers Procedure Act* elected to make a decision on the basis of the existing evidentiary record.

When the capitalized word "Tenant" is used in this order, it refers to all persons identified as a Tenant at the top of the order.

Preliminary Issue:

1. As a preliminary matter, the Tenant requested an adjournment of the proceedings citing a lack of time to prepare for the hearing and retain legal representation, claiming the Tenant had not received the Notice of Hearing until September 26, 2024. Taking in submissions from both parties at this hearing, I determined the adjournment was not to be granted. My reasons for denying this adjournment are as follows.
2. The Landlord's representative objected to the adjournment due to the prejudice an adjournment would cause the Landlord as the allegations were serious in nature. The Landlord's representative further claimed the Tenant had more than enough time to secure representation and prepare for a hearing in which all evidence had been disclosed in a package to the Tenants more than 7 days before the hearing.
3. Section 183 of the *Residential Tenancies Act, 2006* (the 'Act') states that the Board shall adopt the most expeditious method of determining the questions arising in a proceeding that affords to all persons directly affected by the proceeding an adequate opportunity to know the issues and be heard on the matter.
4. I find that the Tenant received adequate notice of the hearing and had a reasonable opportunity to obtain legal representation. In fact, based on the Tenant's own testimony he spoke with a representative for over a month in advance of the hearing from Don Valley legal clinic. Both sides were present at the hearing and the Tenant had received the Landlords' evidence at least 7 days before the hearing in accordance with LTB Rule of Procedure 19. I am therefore satisfied that the Tenant had an adequate opportunity to know the issues and be heard on the matter.

Determinations:

5. As explained below, the Landlord has not proven on a balance of probabilities the grounds for termination of the tenancy. Therefore, the application is dismissed.

6. The Tenant was in possession of the rental unit on the date the application was filed.
7. The residential complex is a multi-residential building. The subject unit is located on the first floor, accessible by stairs and a hallway which are common areas. There is a back entrance which provides access to a parking area. The common space is monitored by security cameras.
8. It is undisputed that the incident occurred in the residential complex.

N6 and N7 Notices of Termination

9. A single incident on May 11, 2024 gave rise to the Landlord giving the Tenant a N6 Notice of termination and an N7 Notice of termination on August 22, 2024. The N7 Notice alleged the Tenant seriously impaired the safety of another person in the residential complex and the N6 Notice alleged the Tenant committed an illegal act in the residential complex when the tenant possessed a weapon for dangerous purposes and discharged a firearm in the residential complex contrary to sections 244, 87 and 88 of the *Criminal Code of Canada*.

Incident on May 11, 2024

Landlord's evidence

10. The Landlord's representative submitted into evidence video camera footage dated May 11, 2024 between 1:41 a.m. and 1:51 a.m., capturing the incident. Referencing the aforementioned video, the Landlord's witness Detective Constable Justin Essert ("JE") of the Toronto Police testified regarding his investigation. JE testified that at 1:42 a.m. the Tenant was holding his belt area while running up the stairs, showing characteristics consistent with carrying a weapon, and at 1:51 a.m. the Tenant had his hand on his right hip, consistent with carrying a weapon.
11. JE further testified that, as a result of the investigation, the Tenant was charged under the Criminal Code with possession of a weapon for a dangerous purpose and discharging a firearm. The detective acknowledged that the criminal charges were outstanding at the time of the hearing.
12. Referencing the aforementioned video, the Landlord's witness, Mr. Vernon Domingo ("VD") testified that he is the Landlord's agent responsible for the residential complex. VD did not witness the alleged incident firsthand. His knowledge of the incident is based on his review of video recordings from the complex and information provided by others, specifically the police.
13. The Landlord's representative entered into evidence a written report completed by VD, dated June 17, 2024. The report states VD was contacted by a police officer regarding an incident that had occurred earlier that morning. According to VD, the police informed him that there had been a shootout at the residential complex at approximately 2:00 a.m. and

that the Tenant was involved. VD testified that after reviewing the video recordings, he concluded that the Tenant committed the alleged acts.

Tenant's evidence

14. The Tenant denied discharging a firearm or possessing a weapon on May 11, 2024. The Tenant testified that the alleged incidents do not align with the timing on the video recordings and even if they did align, the Tenant testified that the videos do not explicitly show that he was in possession of a weapon or show that a weapon was discharged. The Tenant further testified that police searched his unit following the incident and that no firearm or weapon was located.
15. The Tenant testified that he has resided in the rental unit for approximately fifteen years and has not previously been involved in incidents at the residential complex.
16. During cross-examination, the Tenant initially denied being the individual depicted in one of the video recordings and later acknowledged that he was the individual shown. This inconsistency adversely affects the weight given to portions of the Tenant's testimony.
17. The Tenant alleged that the Landlord's application was motivated by a desire to terminate his long-standing tenancy in order to re-rent the unit at a higher market rent.

Analysis

18. Section 61(1) *the Act* provides a notice of termination may be given by the Landlord when an illegal act is committed or permitted by the Tenant or another occupant of the residential unit. To succeed under section 61 of *the Act*, the Landlord must establish, on a balance of probabilities, that:
 - i. An illegal act occurred;
 - ii. The Tenant committed the illegal act; and
 - iii. The act occurred in the residential complex.
19. Pursuant to section 66 of *the Act*, a landlord may give a tenant a notice of termination if an act or omission of the tenant seriously impairs the safety of another person, provided that the act or omission complained of occurs in the residential complex. To succeed under section 66 of *the Act*, the Landlord must establish that the Tenant's conduct seriously impaired the safety of another person.
20. The Landlord bears the burden of proving the grounds for termination on a balance of probabilities.
21. Here the Landlord's case relies substantially on hearsay evidence. The Board may admit hearsay evidence; however, the weight to be given to such evidence depends on its reliability, necessity, and corroboration, particularly where the allegations are serious and

carry significant consequences. Also, while a criminal conviction is not required for the Board to find that an illegal act occurred, the existence of outstanding criminal charges does not, on its own, establish that the alleged conduct occurred. In this case, neither JE nor VD personally witnessed the alleged discharge of a firearm or observed the Tenant in possession of a weapon. While hearsay evidence is admissible, the Board must exercise caution where the allegations are extremely serious and the evidence is uncorroborated.

22. With respect to VD's evidence, VD's conclusion regarding the alleged shooting and that the Tenant committed the alleged acts is not based on direct observation rather, it is based on information provided to him by police and his own inferences drawn from video recordings. As such, I assign no weight to this evidence.
23. With respect to JE's evidence, the detective did not personally witness the alleged incident. His testimony regarding the alleged discharge of a firearm and the Tenant's involvement was based on his investigation, his review of information gathered during that investigation, and the laying of criminal charges. The Landlord led no evidence physically showing a firearm itself, the ammunition, shell casings, or other physical evidence that may have been recovered during a police search of the scene or of the Tenant's unit, and no direct eyewitness evidence of the alleged discharge was presented.
24. With respect to the video evidence, the Landlord submitted into evidence four video recordings from the residential complex timestamped at approximately 1:41 a.m., 1:42 a.m., 1:44 a.m., and 1:51 a.m. on May 11, 2024. The videos show the Tenant outside the building, the Tenant running up stairs, and the Tenant moving within a hallway. Another video shows other individuals running away from the residential complex. I have specifically considered JE's description of the incidents captured in the recordings, which includes JE's explanation that the Tenant's hand position was consistent with the Tenant carrying a weapon, and I find this description speculative. None of the video recordings depict a firearm, the discharge of a firearm, or the Tenant in possession of a weapon. Therefore, I find the witnesses' testimony is uncorroborated by the video recordings.
25. The specific evidence at issue is the detective's testimony; this testimony was based on his notes derived from what the complainant(s) described to him about the incidents, and this formed the basis for laying charges against the Tenant. In forming my analysis, I have considered *Manikam v. Toronto Community Housing Corporation, 2019 ONSC 2083*. In the present case, the Landlord did not lead any evidence to show that the complainant's statement was taken under oath, nor, did not lead any evidence to show that the complainant's statement provided to the detective was reliable. Here, the Landlord did not call the complainant(s), who's account of the events formed the basis for laying the charges, as a witness or other individuals at the residential complex who may have heard or witnessed the alleged shots. Further, there was no evidence before the Board that the Landlord was unable to locate the complainant(s), and no reason was given as to why the

complainant or others who may have heard the shots were not called to testify. Had these individuals been called as witnesses, their testimony would have been subject to crossexamination, and this may have added credibility to the Landlord's submissions that the Tenant was either responsible for the alleged illegal acts or that the incident rises to the level of an impairment of safety.

26. The detective's testimony was the primary evidence relied upon by the Landlord that the Tenant committed an illegal act or caused serious impairment of safety, and as mentioned the video recordings do not show a firearm, the discharge of a firearm, or the Tenant in possession of a weapon. The videos do show the Tenant moving within the residential complex on or around the alleged time of the illegal incident, but do not establish the cause of that movement or directly link it to the alleged illegal acts or serious impairment. The Tenant was therefore the only person present at the hearing who was also present at or around the time of the incident and the Tenant testified he did not hear shots. With respect to weighing the Tenant's evidence, although the Tenant's inconsistent testimony somewhat undermines his credibility, a finding that the Tenant is not fully reliable does not, by itself, establish that the alleged illegal act/serious impairment of safety occurred or that it was committed by the Tenant. In this case, I prefer the Tenant's evidence which is at the very least a firsthand account of the incident - factoring in the aforementioned credibility issues – over the lightly-weighted detective's evidence.
27. I have assessed the reliability and probative value of the evidence presented, including the hearsay evidence, in light of the seriousness of the allegations. I have also considered the Landlord's representative's submission that s. 15(1) of the SPPA specifically permits the introduction of hearsay evidence, whether or not it was given under oath or affirmation. I have also considered that admitting hearsay evidence under s. 15(1) of the SPPA can and has been found to constitute a denial of natural justice (see *B.(J). v. Catholic Children's Aid Society of Metro Toronto* [1987] O.J. No. 2614 (Div. Ct.) and *Re Girvin et al. and Consumer's Gas Co.*, [1973] O.J. No. 814 (Div. Ct.)). In my analysis, where evidence was based on second-hand information or inference rather than direct observation, I have explained the weight assigned to that specific evidence.
28. For the reasons set out above, I am not satisfied, on a balance of probabilities, that the Tenant discharged a firearm or possessed a weapon within the residential complex. The Board cannot infer, without sufficient evidence, that the Tenant's conduct caused a serious impairment of safety. The Landlord has not met its burden under section 66 of *the Act*. Similarly, on the totality of the evidence, I am not satisfied, on a balance of probabilities, that the Tenant committed an illegal act within the meaning of section 61 of *the Act*.
29. The Landlord has the burden of proving the allegations in the N6 and N7 Notices. I find that as the Landlord could not make out a prima facie case, the Landlord's application must be dismissed

It is ordered that:

1. The Landlord's application is dismissed.

December 18, 2025

Date Issued

Greg Witt

Member, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor Toronto
ON M7A 2G6

If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.